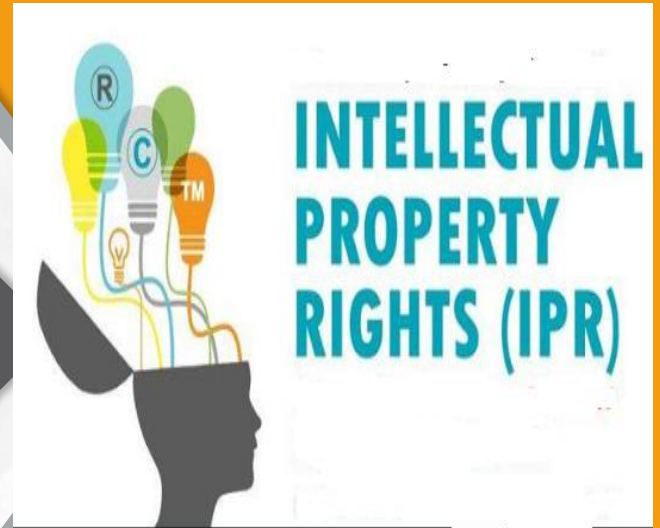


Intellectual Property Rights



Contents

- Discovery, Invention ,creativity , Innovation
- History and significance of IPR
- IPR types
 - Patents
 - Trademarks
 - Tradeseecrets
 - Industrial designs
 - Integrated circuits
 - Copyrights & related Rights
 - Geographical Indications
- Non patentable criteria

creative

learn

idea

mind

think

brain



IP is a product of human mind



INTELLECTUAL PROPERTY RIGHTS(IPR)



- Science : How things are
- Technology : How to do things
- Management : How to get things done
- Entrepreneurship : Doing things to make money
- Innovation : Doing Entrepreneurship

“Imagination is more important than knowledge”

-Albert Einstein, Scientist (1879-1955)

Science

- Science is the pursuit of new knowledge about nature.
- Its main goal is knowledge, not solutions to problems.
- Experimental investigation, and theoretical explanation of natural phenomena



Observation, Identification, Description

Engineering

- The profession in which knowledge of the **Mathematical and natural sciences** gained by study.
- Engineering in the simplest sense is the deliberate, orderly process through which **technology is created.**

Technology

The **innovation, change, or modification** of the natural environment to satisfy the perceived **human wants and needs**.



The greatest difference between science and technology

- The main purpose of science was **curiosity**, where the main purpose of technology was a matter of survival.
- Science and technology need to serve each other while serving mankind.

Discovery, Invention, Creativity and Innovation

Discovery

- A discovery is recognizing something that already exists for the first time , that nobody has found before.
- Discovery is finding out something that is pre existing
- eg. how christopher columbus discovered the America

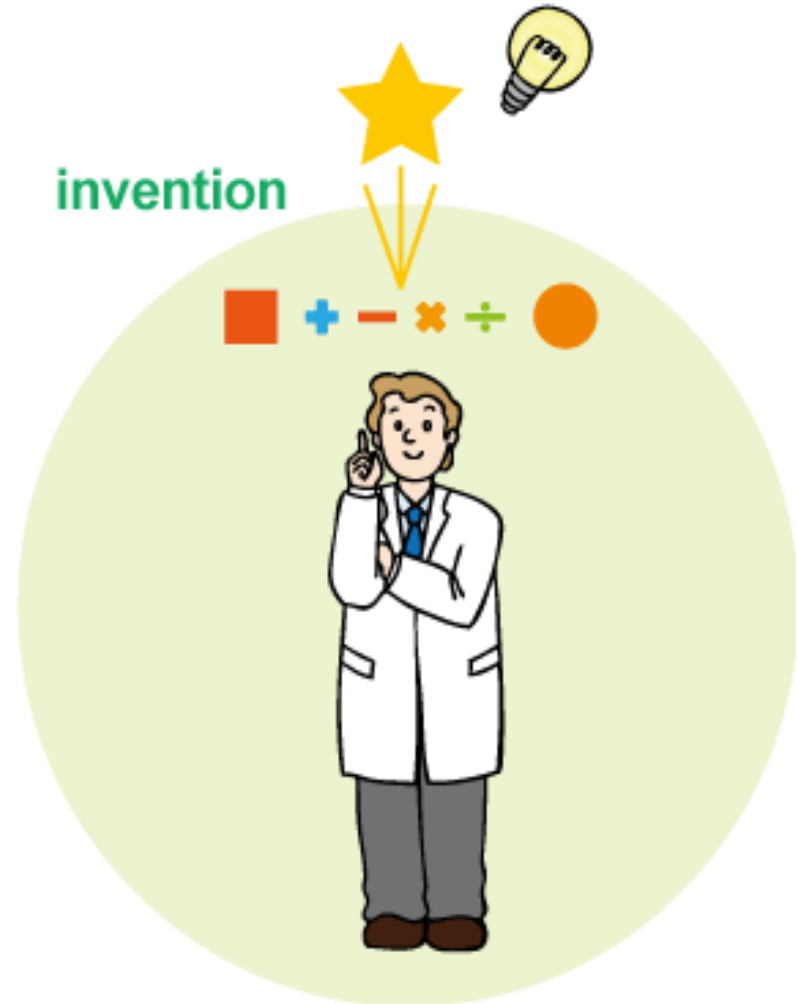
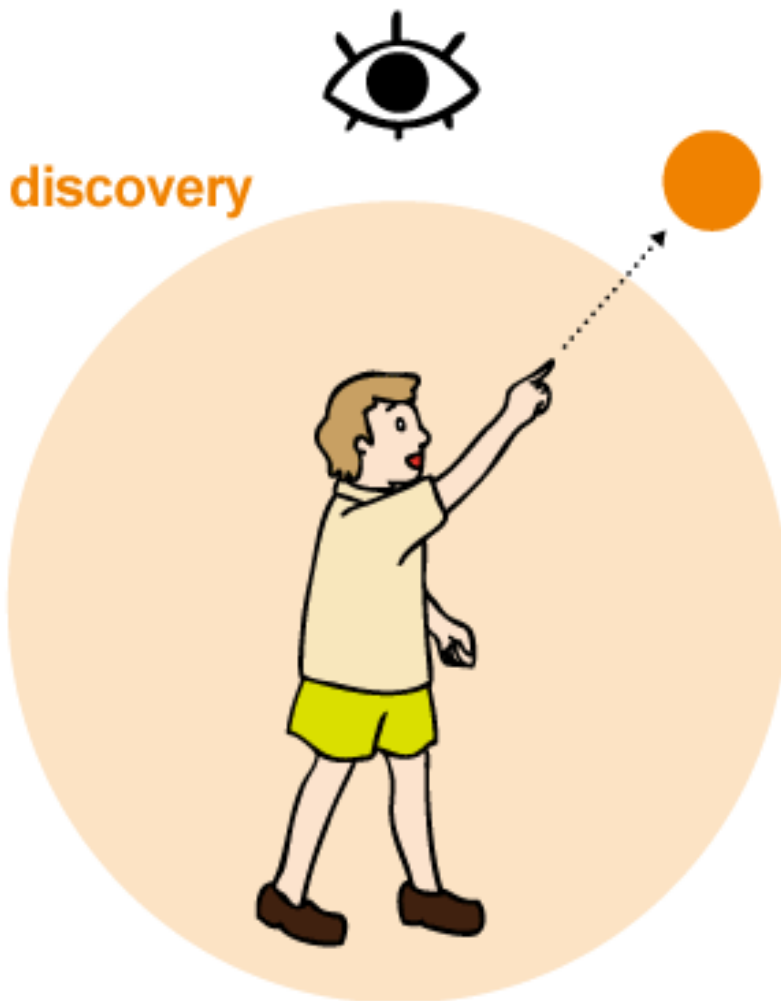
Discovery

- Discovery primarily relates to the acquiring of new knowledge by
 - Experiments, Investigation and Thinking.
- It indicates that it is the **finding of a new principle**, theory or knowledge, which is already existing or concealed in nature.
- It adds to the existing human knowledge.

Discovery vs Invention

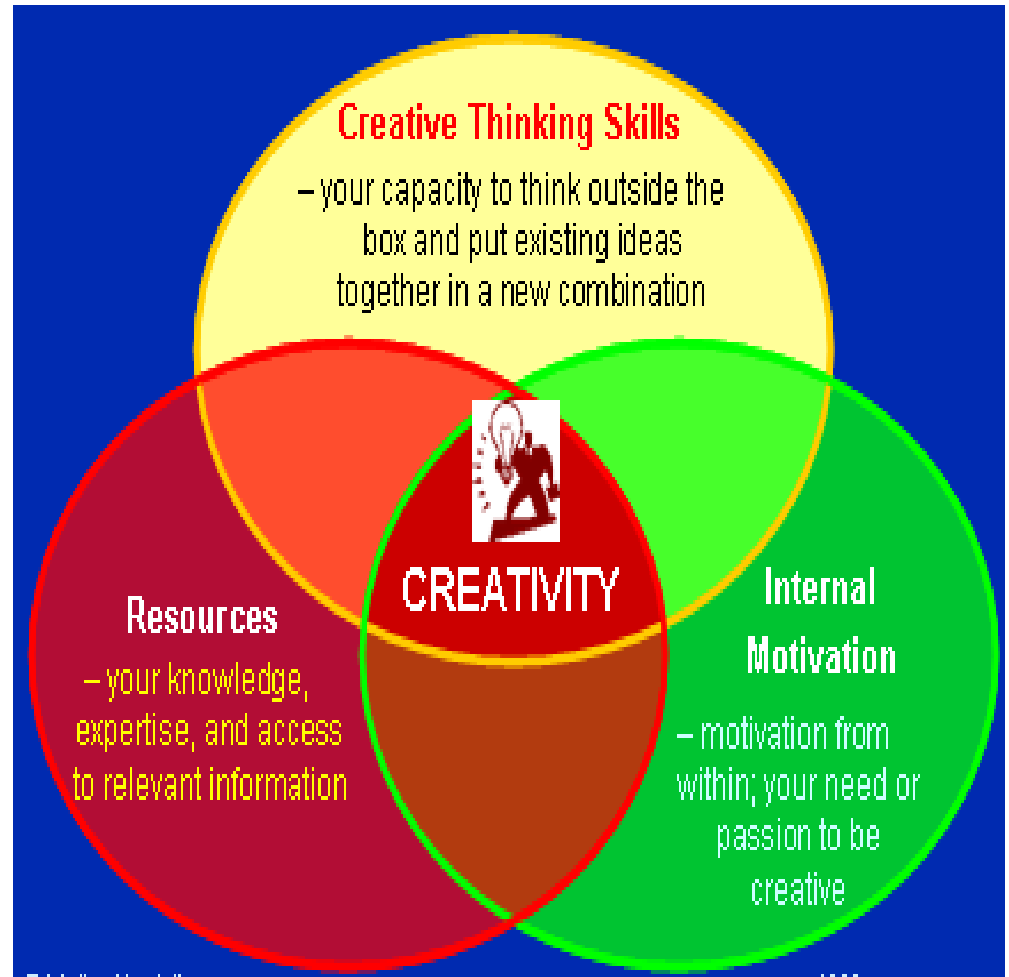
- **Invention** is the development of something new, which is not preexisting.
- There is the application of pre-existing knowledge established by discovery.
- Eg. Electricity is a product of discovery , whereas electric bulb is an invention.
- Power of steam is a discovery and the steam engine is an invention.
- Generally speaking an invention is patentable and discovery is not patentable.

Discovery of Gravitational force by [sir Isac Newton](#)
Thomas Edison invented the light bulb.



Creativity

- **Creativity:** the quality of being creative, the ability to create
- **Creativity** would then be the composite ability to innovate and/or invent.



Creativity (Creation Of The Mind)

Creativity is the ability to

- Think / come up with new idea
- Design new “inventions”
- Produce “works of art”
- Solve problems in new ways, or develop a new idea based on an “original” knowledge.
- Novel or unconventional approach.

Invention and Innovation

- “**Invention**“ can be defined as the creation of a product or introduction of a process for the first time.
- “**Innovation**,” occurs if someone improves on or makes a significant contribution to an existing product, process or service.

Examples

Invention



Innovation



Invention



Tim Berners-Lee invented the
World Wide Web (Internet)

Innovation



Mark Zuckerberg used the
Internet to define social
networking



Innovation



“There is a way to do it better - find it”

-Thomas Edison

TECHNIQUES FOR INNOVATION

- **S**UBSTITUTE, SIMPLIFY
- **C**OMBINE
- **A**DAPT
- **M**ODIFY, MAGNIFY, MINIFY
- **P**UT TO OTHER USES
- **E**ELIMINATE
- **R**EVERSE, REARRANGE

Intellectual Property Rights

- ◎Intellectual property (IP) refers to the property created with the use of Intellect.
- ◎IP refers to the creations of mind.
- ◎It is given the status of property because of its commercial value.
- ◎These are protected under different rights

IP as a property

- Can be sold
- Can be bought
- Can be lease or rent
- Can pass under a will
- Can be assigned

Need for Protection of IP

- ◎To provide an incentive to disclose to the public for further creations
- ◎To give such creators official recognition;
- ◎To create repositories of vital information;
- ◎To prevent others from illegally exploiting the creation
- ◎TO AVOID RE-INVENTING THE WHEEL

- **IPR has significant influence on economic progress**

- Enhance research by dissemination information on advances in technology
- IPR acknowledges and gives official recognition to the efforts employed by the person, firms, or organization
- Technology transfer, licensing and investments become much easier with IPR
- Promote the innovation process
- Encourage high risk investments which lead to industrialization
- Avoid duplication of invention/ investment in R& D
- Reduce cost of production

Types of Intellectual Property

1. Patents
2. Trade Marks
3. Trade Secrets
4. Industrial Designs
5. Layout-Designs of Integrated Circuits
6. Copyrights and Related Rights
7. Geographical Indications

Patent

- The word patent comes from the Latin '*litterae patentes*', meaning an *open letter*.
- A patent is an exclusive right granted for an invention
 - It may be a product or a process that provides a new way of doing something, or
 - offers a new technical solution to a problem.

Patent - Definition

- A Patent is a statutory right for an invention granted for a limited period of time to the patentee by the Government, in exchange of full disclosure of his invention for excluding others, from making, using, selling, importing the patented product or process for producing that product for those purposes without his consent
- It is a techno- legal document



TRADEMARKS

- Trade marks have been defined as any sign , or any combination of signs capable of distinguishing the goods or services of one undertaking from those of other undertakings.
- The system helps consumers identify and purchase a product or service because its nature and quality, indicated by its **unique** trademark, meets their needs
- It is used as a marketing tool so that customers can recognize the product of a particular trader.



LACOSTE

Trade Secrets



- Any Information that can be used in the operation of a business or other enterprise, is not generally known in the trade, and
- significant efforts have been made to keep information secret
- to afford an actual or potential competitive advantage over others

INDUSTRIAL DESIGNS

- JUST AS TRADEMARK SHAPES DISTINGUISH A COMPANY'S CORPORATE IMAGE, GOODS AND SERVICES;
- AN INDUSTRIAL DESIGN SHAPES THE FORM OF NEW PRODUCTS TO DIFFERENTIATE IT FROM CURRENT PRODUCTS.
- COMPANIES REGULARLY LAUNCH NEW DESIGNS / NEW MODELS
- INDUSTRIAL DESIGNS AND TRADEMARKS ARE INTELLECTUAL PROPERTY (IP) TOOLS THAT CONTRIBUTE TO A BRANDING STRATEGY

INDUSTRIAL DESIGNS

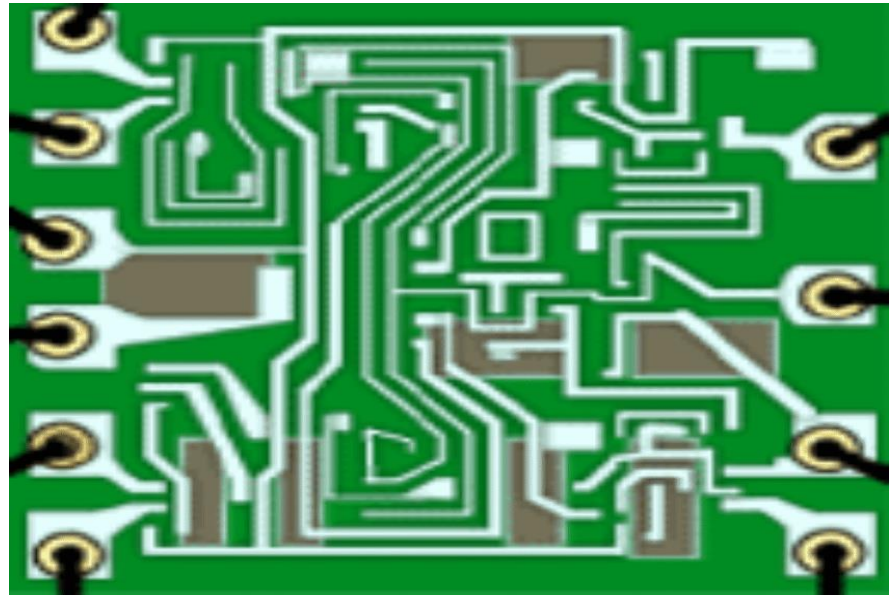
- Industrial design generally refers to the product's overall form and function.
- Form - Ornamental design
- **AN INDUSTRIAL DESIGN** enhances **visual appeal** and **differentiates** product.
- **Only the aesthetic/visual form of a product can be filed and protected as an INDUSTRIAL DESIGN**
- not the Technical (Patents) nor Distinguishing Features (Trademarks)



Semiconductor Integrated Circuits & Layout Design

- Layout design refers to a layout of transistors and other circuitry elements and includes lead wires connecting such elements and expressed in any manner in a semiconductor integrated circuit.
- IC is an electronic circuit in which the elements of the circuit are integrated into some medium and function as a unit.
- The medium used is a solid semiconductor, usually silicon.
- The manufacturing technology allows the circuit to be integrated into a piece of silicon which is small and thin, like a wafer.

- Semiconductor Integrated Circuit means a product having transistors and other circuitry elements, which are inseparably formed on semiconductor material or insulating material, or inside the semiconductor material, and designed to perform an electronic circuitry function.
- Integrated circuits are utilized in many products from watches to televisions to traffic lights and of course computers.



Copyrights

- Copyright consists of a bundle of rights given to creators in their literary and artistic works.
- These creators, and their heirs, hold the exclusive rights to use or license others to use the work on agreed terms.

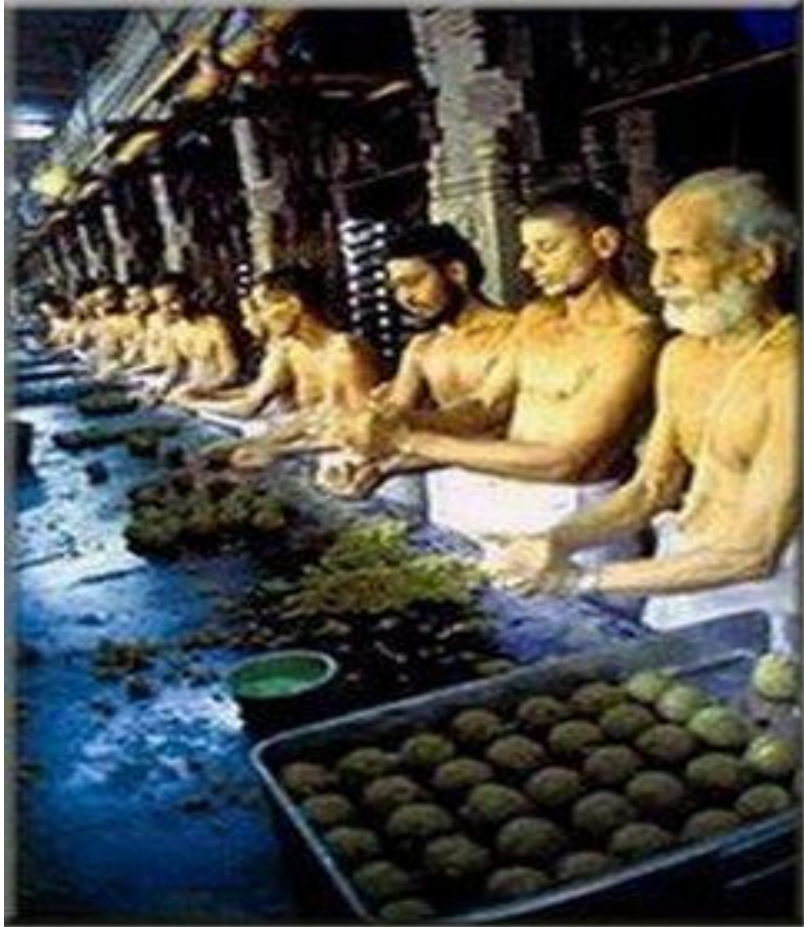


Geographical Indication

- It is an indication
- It originates from a definite geographical territory.
- It is used to identify agricultural, natural or manufactured goods
- The manufactured goods should be produced or processed or prepared in that territory.
- It should have a special quality or reputation or other characteristics based upon the climatic or production characteristics unique to the geographical location

- Some better-known examples of GI are “Champagne,” “Bordeaux,” - wines from France
- “Chianti,” famous for their wines in Italy





Tirupathi Laddu



Pochampally Ikat

Non Patentable Inventions

- There are three sections in **Indian Patents Act**
- **Section 3** - Non patentable inventions
- **Section 4** – Inventions relating to atomic energy
- **Section 5** – Inventions where only methods or process of manufacture

Section 3 - Non patentable inventions

- Which causes serious prejudice to human , animal, plant life or to environment.
- Mere discovery of a scientific Principle
- Mere discovery of any new property or new use of a known substance. Eg. Use of neem as pesticide or insecticide.
- Mere arrangement or re- arrangement or duplication of known devices each functioning independently of on another in a known way.